REPORTABLE (24)

JEFAT CHAGANDA
v
(1) NATIONAL PROSECUTING AUTHORITY (2) OFFICER IN CHARGE ZIMBABWE PRISONS AND CORRECTIONAL SERVICES, KHAMI

SUPREME COURT OF ZIMBABWE
MAVANGIRA JA, CHIWESHE JA & MUSAKWA JA
BULAWAYO: 29 SEPTEMBER 2025 & 17 MARCH 2026

T.Tavengwa, for the appellant

K. Shava, for the first respondent

No appearance for the second respondent

CHIWESHE JA: This is an appeal against the whole judgment of the High Court (the court *a quo*) sitting at Bulawayo dated 13 August 2023, wherein the court *a quo* dismissed the appellant`s urgent chamber application for "*habeas corpus*."

Aggrieved by the decision of the court *a quo*, the appellant has noted the present appeal.

THE FACTS

The facts are common cause. These are they. The appellant and his co-accused appeared before the court *a quo* on 6 November 2018 charged with theft of 28.5 kgs of gold and, alternatively, obstructing or defeating the course of justice. It was alleged that the appellant and his co-accused had stolen the said gold from Plumtree Police Station where it was being held as an exhibit. The gold was valued at US$ 970 007.80. The appellant and his co-accused all pleaded not guilty to that charge. Thereafter a full trial ensued. The appellant,

who was on bail all along, was alleged to have failed to attend court on 27 June 2023. A warrant for his arrest was issued. Upon his arrest, the court *a quo* revoked his bail and ordered that he be remanded in custody.

However, during the course of the trial, one of the two assessors died. As a result, the court *a quo* set the proceedings aside and directed that in terms of the law a trial "*de novo*" should be held. The appellant, who was still in custody, made an urgent chamber application for "*habeas corpus*" on the grounds that as the proceedings had been set aside pending a fresh trial, there was no longer any legal basis upon which the second respondent could hold him in custody. The court *a quo* found no merit in the urgent chamber application and accordingly dismissed it.

PROCEEDINGS IN THE COURT *A QUO*

On 4 August 2025 the appellant filed an urgent chamber application for "*habeas corpus*", contending that his continued incarceration was unlawful. He argued that after the proceedings had been set aside on account of the death of one of the assessors, he had not been served with any notice for a fresh hearing nor had he been indicted to the High Court on any charges yet he remained in custody. He sought his immediate release.

The first respondent opposed the application. It argued that there were cogent reasons for keeping the appellant in custody because he still had a case pending in the court *a quo*. It was submitted that the appellant had defaulted attending court on 27 June 2023 and a warrant for his arrest had been issued. It was further submitted that the appellant had disobeyed a lawful order by failing to attend court for the continuation of his trial. It was further submitted that in July 2025, the appellant was notified that his trial would commence

on 3 November 2025. Accordingly, it was contended that the appellant was lawfully detained pending trial.

The court *a quo* noted that the proceedings in the appellant`s trial had been set aside and a trial *de novo* was to be held. It ruled that in terms of s 8 of the High Court Act [*Chapter 7:06*] (the Act), the appellant should remain in custody unless granted bail. It further ruled that the death of one of the assessors did not and could not, of its own accord, extinguish the charges preferred against the appellant, which charges remained extant pending trial "*de novo*". It held further that in the circumstances, the appellant`s reliance in his application for *"habeas corpus*" on the provisions of s 70 of the Prisons and Correctional Services Act [*Chapter 7:21*] (the Prisons Act), was misplaced. Accordingly, the court *a quo* dismissed the appellant`s application. It also directed the first respondent to indict the appellant for trial on 3 November 2025. Its order specifically reads as follows:

> **"IT IS ORDERED THAT:**
>
> 1. Application is hereby dismissed.
> 2. The first respondent is ordered to indict the applicant again for the 3rd November 2025."

The appellant appeals that decision on the following grounds:

"**GROUNDS OF APPEAL**

1. The Honourable court *a quo* erred in dismissing the urgent application for "*habeas corpus*", when the respondents failed to give a lawful justification for appellant detention in terms of s 70 (1) of the Prisons and Correctional Services Act [*Chapter 9:23*]. (*Sic*)

2. The Honourable court erred at law in dismissing the relief sought in terms of s 50 (7), to have applicant detention declared illegal when the proceedings under HC (CRB) 108/25 and HC (CRB) 118/25 when quashed and set aside. (*Sic*)
3. The court *a quo* erred in granting relief number 2 when such relief was never sought by the respondent and applicant."

The appellant seeks the following relief.

RELIEF SOUGHT

Wherefore appellant prays for:

"1. That the appeal succeed, and it be upheld with costs. (*Sic*)

2. That the judgment of the Honourable court *a quo* be set aside and substituted with the following order:
   (a) The detention of the applicant Khami Prison be and is hereby declared to be illegal. (*Sic*)
   (b) The Registrar of the High Court be and is hereby directed to issue out a warrant of liberation in favour of the appellant and immediately serve it upon the second respondent who shall upon receipt of the warrant immediately release the appellant from his custody."

ISSUES FOR DETERMINATION

The grounds of appeal raise two issues for determination, namely,

1. Whether or not the court *a quo* erred in dismissing the urgent chamber application for "*habeas corpus*".
2. Whether or not the court *a quo* granted relief not sought by either party.

PROCEEDINGS BEFORE THIS COURT

In his heads of argument, the appellant contends that the proceedings *a quo* having been set aside on account of the untimely death of one of the assessors, there was then no pending charge against him and, for that reason, the court *a quo* erred in dismissing his urgent chamber application for "*habeas corpus*". In any event, argues the appellant, after the

proceedings were set aside there was no order for further detention that was issued by the court *a quo*. Further, no order had been issued directing that he be kept in custody. He further argues that s 8 (3) (b) of the Act mandates the court *a quo* to issue an order in compliance with s 70 (1) (a) of the Prisons Act. The court *a quo* did not issue an order placing him on remand. Therefore, the court *a quo* did not enforce s 8 (3) (b) of the Act. It is further contended that this omission by the court *a quo* was fatal because it automatically meant that there was no compliance with s 70 (1) (a) of the Prisons Act. It is argued, in that regard, that the first and second grounds of appeal ought to succeed since there was no operational order that complied with s 70 (1) (a) of the Prisons Act. In support of the third ground of appeal, the appellant's argument is that a court can only grant an order that has been sought. It cannot act on a frolic of its own. The case of *Nzara & 3 Ors* v *Kashumba N.O & 3 Ors* 2018 (1) ZLR 194(S) is cited in support of that contention.

On the other hand, the first respondent's heads of argument are to the following effect. The appellant is lawfully in custody by operation of law. Reliance on s 70 (1) of the Prisons Act is misplaced. It is common cause that the proceedings *a quo* were set aside following the death of an assessor. The charge against the appellant remained extant. Accordingly, the governing provision under the circumstances is s 8 of the Act and not s 70 (1) of the Prisons Act. Section 8 of the Act does not direct a judge to give an order for the further detention of an accused person. Accordingly, the appellant's argument that the court *a quo* erred at law by not giving an order for further detention is misplaced. The only available option for the appellant was to apply for bail pending trial. In any event, the appellant was on a warrant of arrest for failure to attend his trial, having been properly warned by the court *a quo* to do so. For that reason, he was in contempt of court in terms of s 182 (2) (a) of the Criminal Code. He cannot therefore claim to be in unlawful detention. The appellant was eventually indicted for

trial in the High Court on 21 August 2025. It is for these reasons that the first respondent prayed that the appeal be dismissed.

At the hearing of the appeal, Mr *Tavengwa*, for the appellant, submitted that the issue that had to be determined by this Court was narrow and centered on the interpretation of s 8 (3) (b) of the Act and s 70 (1) of the Prisons Act. He submitted that the appellant was unlawfully detained because the intention of the legislature was to restore the "*status quo*" prior to the indictment proceedings. The bail previously granted to the appellant was restored by operation of law. He submitted that the appellant was never placed on remand because it was a summons case. He further submitted that s 70 (1) of the Prisons Act specifies the circumstances under which the second respondent may keep a person in custody. He submitted that the second respondent had no power to detain any person outside the provisions of s 70 (1) of the Prisons Act. He criticised the court *a quo*'s finding that the appellant needed to apply for bail because one cannot apply for bail in a summons matter. In his view, the court *a quo* ought to have made an order invoking s 8 (3) (b) of the Act and directing that the second respondent appears before it to adduce evidence of compliance with that section.

On the other hand, Mr *Shava*, for the respondents, submitted that when the trial commenced, the appellant was out of custody but he later absconded and faked his death. He did not attend court for continuation of trial despite being aware of the date for continuation of trial. A warrant for his arrest was then issued. He was placed in custody on the strength of that warrant. Counsel submitted that the appellant's reliance on s 70 (1) of the Prisons Act was misplaced because the applicable provision in this case was s 8 of the Act. That section does not make reference to s 70 (1) of the Prisons Act. For these reasons, he submitted that the appellant was lawfully in custody.

ANALYSIS

Section 3 of the Act provides for the composition of the High Court. It reads, for purposes of the conduct of criminal trials, as follows:

> "(3) Composition of High Court
>
> Subject to s 4, the High Court shall be duly constituted-
>
> (a) ……..
> (b) for the purpose of hearing a criminal trial, if it consists of one judge of the High Court and two assessors;
> (c) ……
> (d) ……"

Section 8 of the Act provides for the procedure to be followed where the composition of the High Court during a criminal trial falls short of the requirements of section 3 (b) of the Act by reason of incapacity of one of the assessors. It provides as follows:-

> "(1) If at any time during a criminal trial in the High Court one of the assessors dies or becomes, in the opinion of the judge, incapable of continuing to act as assessor, the judge may, if he thinks fit, with the consent of the accused and the prosecutor, direct that the trial shall proceed without that assessor.
>
> (2) Where the trial proceeds in pursuance of a direction given in terms of subs (1), the decision of the court shall be unanimous.
>
> (3) If, in the circumstances referred to in subs (1) -
>
> (a) the judge does not, in terms of that subsection, direct that the trial shall proceed without the assessor referred to in that subsection; or
>
> (b) the court is unable, as required by subsection (2), to agree on a decision on any charge in the indictment; the accused, unless already on bail, shall remain in custody and may be tried again; provided that a judge of the High Court may, in terms of Part IX of the Criminal Procedure and Evidence Act [*Chapter 9:07*], release the accused on bail." (My emphasis)

In *Tapedza & Ors* v *Zera & Anor* 2020 (1) ZLR 446(S) at 448G this Court held as follows:

> "It is an established principle of law that when interpreting a statute, the first cannon of interpretation to be applied is the golden rule of interpretation. This rule is to the effect that where the language used in a statute is plain and unambiguous, it should be

> given its ordinary meaning unless doing so would lead to some absurdity or inconsistency with the intention of the legislature."

In casu the provisions of s 8 of the Act are clear and unambiguous. The intention of the legislature can be ascertained by giving the words used their ordinary and literal meaning. The purpose of these provisions is to give procedural clarity in criminal trials in the event that an assessor becomes incapacitated in the middle of a trial thereby rendering the court's composition otherwise irregular. The legislature's intention is clear in that the proceedings may continue, with the consent of the accused and the prosecution, without the concerned assessor provided that the court's decision on any charge in the indictment, is unanimous. Alternatively, if the judge does not direct that the trial proceeds or having directed that the trial proceeds but the decision of the court on any charge in the indictment, is not unanimous, the accused, if he is not already on bail, shall remain in custody and may be tried again. The practice in the criminal courts is that where the judge has not directed that the trial proceeds in the absence of an assessor, the proceedings are set aside and the trial may be commenced afresh before a properly constituted court.

It is clear from these provisions that an accused person who is not on bail shall remain in custody, unless subsequently granted bail. There is no provision that requires the court, when proceedings are so terminated, to either pronounce a verdict on the charges before it as to the guilt or otherwise of the accused person or declare that the charges preferred against the accused person be set aside on account of the termination of the proceedings under these circumstances. On the contrary, it is provided that an accused who is not on bail shall remain in custody unless granted bail and may be tried again on the same charges. To that end, the contention by Mr *Tavengwa*, for the appellant, that the court *a quo* erred in dismissing the appellant's urgent chamber application for *habeas corpus* is without merit.

It is common cause that the appellant was not in custody when the trial commenced because the first respondent had elected to proceed by way of summons instead of placing the appellant on formal remand. However, it has not been disputed that the appellant's status changed when a warrant for his arrest was issued following his alleged failure to attend court on 27 June 2023 having been warned to do so. It is evident that the second respondent detained the appellant on the strength of that warrant. At the time that proceedings terminated in the court *a quo*, the appellant was on account of that warrant, detained at Khami Prison. He was in custody. The law provides that an accused person who is in custody at that juncture shall remain in custody unless granted bail. Thus, whilst the appellant was on bail all along, he ceased to be on bail once the warrant of arrest was issued. But for the warrant of arrest, the appellant would have remained on bail when the proceedings were terminated and would have remained on bail after termination of proceedings.

The appellant has relied on the provisions of s 70 (1) (a) of the Prisons Act in his quest for freedom. That section reads:

> "70 Admission of inmates into prison or correctional facility
>
> (1) No person shall be admitted into a prison or correctional facility unless accompanied by-
>
> (a) a remand warrant, order of detention or warrant of conviction or of committal under the hand of any person authorized to sign or counter sign such warrant or order under any enactment."

It is clear that the effect of the above provision is that a person shall not be detained by the second respondent without lawful authority. By parity of reasoning and by law, the second respondent shall not release a lawfully detained person without lawful authority such as a warrant of liberation. The appellant's contention is that following the termination of trial proceedings, and in the absence of an order by the court for his further incarceration, the second respondent no longer had lawful authority to detain him. This argument puts the cart

before the horse. The second respondent could not have released the appellant in the absence of an order or warrant issued by the court *a quo* for his release. It has not been argued that such an order or warrant had been issued by the court *a quo* and that the second respondent was acting in defiance of such order or warrant. On the contrary, the court *a quo* never issued such order or warrant authorizing the second respondent to release the appellant. The attack on the second respondent is accordingly ill conceived.

We agree with Mr *Shava*, for the respondent, that reliance by the appellant on s 70 (1) (a) of the Prisons Act is misplaced. Such reliance seeks to establish that the second respondent detained the appellant without lawful authority. As already indicated, the appellant was detained on the basis of a warrant of arrest issued by the court *a quo*. The warrant of arrest had neither been cancelled nor withdrawn. In fact, the court *a quo* was yet to determine the fate of that warrant. For as long as the warrant remained valid and extant, the appellant's detention at the hands of the second respondent was lawful. In any event, the appellant himself concedes in his founding affidavit *a quo*, that following the warrant of arrest his bail was estreated. He cannot now be heard to say that the second respondent held him in custody without lawful authority.

Mr *Tavengwa* sought to argue that the court *a quo* should have acted in terms of the *proviso* to s 8 (3) (b) of the Act thereby releasing the appellant. That argument has no merit. The *proviso* reads:

> "Provided that a judge of the High Court may, in terms of Part IX of the Criminal Procedure and Evidence Act [*Chapter 9:07*] release the accused on bail."

The *proviso* does not make it mandatory that the court *a quo* shall, upon termination of proceedings, release the accused on bail. The use of the word "may" means that such indulgence shall be at the discretion of the court *a quo*. Further, the *proviso* does not

provide that the court *a quo* should grant bail "*mero motu*" without application. It is common cause that the appellant did not apply for bail at the termination of proceedings or at any time thereafter. In any event the gist of the appellant`s application *a quo* was not for bail but for "*habeas corpus*" on the grounds that his detention was unlawful in the first place. We agree, however, with Mr *Tavengwa* that para 3 of the order of the court a *quo* grants relief which had not been sought by either party. It cannot stand.

DISPOSITION

In our view, the appeal against para 1 of the order of the court *a quo* has no merit. It ought to fail. However, the appeal directed at para 2 of that order has merit. It must succeed. There will be no order as to costs.

In the result, it is ordered as follows:

1. The appeal succeeds in part.
2. Paragraph 1 of the order of the court *a quo* be and is hereby upheld.
3. Paragraph 2 of the order of the court *a quo* be and is hereby set aside.

MAVANGIRA JA : I agree

MUSAKWA JA : I agree

Mutuso, Taruvinga & Mhiribidi, appellant's legal practitioners.

National Prosecuting Authority, 1st respondent's legal practitioners.